

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.C.R. 1022
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Article IV, part 2, section 1, Constitution of Arizona, is
3 proposed to be amended as follows if approved by the voters and on
4 proclamation of the Governor:

5 1. Senate; house of representatives; members; special
6 session on petition of members; congressional and
7 legislative boundaries; citizen commissions

8 Section 1. ~~(1)~~ A. The senate shall be composed of one
9 member elected from each of the thirty ~~legislative~~ SENATE
10 districts established pursuant to this section. EACH SENATE
11 DISTRICT SHALL CONSIST OF EXACTLY AND ONLY [THREE] [TWO]
12 GEOGRAPHICALLY SEPARATE HOUSE OF REPRESENTATIVES DISTRICTS.

13 B. The house of representatives shall be composed of
14 two [NINETY] [SIXTY] members, ONE OF WHOM IS elected from each
15 of the ~~thirty legislative~~ [NINETY] [SIXTY] HOUSE OF
16 REPRESENTATIVES districts established pursuant to this
17 section.

18 ~~(2)~~ C. ~~Upon~~ ON the presentation to the governor of a
19 petition bearing the signatures of not less than two-thirds of
20 the members of each house, requesting a special session of the
21 legislature and designating the date of convening, the
22 governor shall promptly call a special session to assemble on
23 the date specified. At a special session so called the
24 subjects which may be considered by the legislature shall not
25 be limited.

26 ~~(3)~~ D. By February 28 of each year that ends in one,
27 an independent redistricting commission shall be established
28 to provide for the redistricting of congressional and state

1 legislative districts. The independent redistricting
2 commission shall consist of five members. ~~no~~ NOT more than
3 two members of the independent redistricting commission shall
4 be members of the same political party. Of the first four
5 members appointed, ~~no~~ NOT more than two shall reside in the
6 same county. Each member shall be a registered Arizona voter
7 who has been continuously registered with the same political
8 party or registered as unaffiliated with a political party for
9 three or more years immediately preceding appointment, ~~AND~~
10 who is committed to applying ~~the provisions of~~ this section in
11 an honest, independent and impartial fashion and to upholding
12 public confidence in the integrity of the redistricting
13 process. Within the three years previous to appointment,
14 members shall not have been appointed to, elected to, or a
15 candidate for any other public office, including precinct
16 committeeman or committeewoman but not including school board
17 member or officer, and shall not have served as an officer of
18 a political party, or served as a registered paid lobbyist or
19 as an officer of a candidate's campaign committee.

20 ~~(4)~~ E. The commission on appellate court appointments
21 shall nominate candidates for appointment to the independent
22 redistricting commission, except that, if a politically
23 balanced commission exists whose members are nominated by the
24 commission on appellate court appointments and whose regular
25 duties relate to the elective process, the commission on
26 appellate court appointments may delegate to such existing
27 commission (hereinafter called the commission on appellate
28 court appointments' designee) the duty of nominating members
29 for the independent redistricting commission, and all other
30 duties assigned to the commission on appellate court
31 appointments in this section.

32 ~~(5)~~ F. By January 8 of years ending in one, the
33 commission on appellate court appointments or its designee
34 shall establish a pool of persons who are willing to serve on
35 and are qualified for appointment to the independent
36 redistricting commission. The pool of candidates shall
37 consist of twenty-five nominees, with ten nominees from each
38 of the two largest political parties in Arizona based on party
39 registration, and five who are not registered with either of
40 the two largest political parties in Arizona.

41 ~~(6)~~ G. Appointments to the independent redistricting
42 commission shall be made in the order set forth below. No
43 later than January 31 of years ending in one, the highest
44 ranking officer elected by the Arizona house of
45 representatives shall make one appointment to the independent
46 redistricting commission from the pool of nominees, followed
47 by one appointment from the pool made in turn by each of the

1 following: the minority party leader of the Arizona house of
2 representatives, the highest ranking officer elected by the
3 Arizona senate, and the minority party leader of the Arizona
4 senate. Each such official shall have a seven-day period in
5 which to make an appointment. Any official who fails to make
6 an appointment within the specified time period will forfeit
7 the appointment privilege. ~~In the event that~~ IF there are two
8 or more minority parties within the house or the senate, the
9 leader of the largest minority party by statewide party
10 registration shall make the appointment.

11 ~~(7)~~ H. Any vacancy in the above four independent
12 redistricting commission positions remaining as of March 1 of
13 a year ending in one shall be filled from the pool of nominees
14 by the commission on appellate court appointments or its
15 designee. The appointing body shall strive for political
16 balance and fairness.

17 ~~(8)~~ I. At a meeting called by the secretary of state,
18 the four independent redistricting commission members shall
19 select by majority vote from the nomination pool a fifth
20 member who shall not be registered with any party already
21 represented on the independent redistricting commission and
22 who shall serve as chair. If the four commissioners fail to
23 appoint a fifth member within fifteen days, the commission on
24 appellate court appointments or its designee, striving for
25 political balance and fairness, shall appoint a fifth member
26 from the nomination pool, who shall serve as chair.

27 ~~(9)~~ J. The five commissioners shall then select by
28 majority vote one of their members to serve as vice-chair.

29 ~~(10)~~ K. After having been served written notice and
30 provided with an opportunity for a response, a member of the
31 independent redistricting commission may be removed by the
32 governor, with the concurrence of two-thirds of the senate,
33 for substantial neglect of duty, gross misconduct in office,
34 or inability to discharge the duties of office.

35 ~~(11)~~ L. If a commissioner or chair does not complete
36 the term of office for any reason, the commission on appellate
37 court appointments or its designee shall nominate a pool of
38 three candidates within the first thirty days after the
39 vacancy occurs. The nominees shall be of the same political
40 party or status as was the member who vacated the office at
41 the time of ~~his or her~~ appointment, and the appointment other
42 than the chair shall be made by the current holder of the
43 office designated to make the original appointment. The
44 appointment of a new chair shall be made by the remaining
45 commissioners. If the appointment of a replacement
46 commissioner or chair is not made within fourteen days
47 following the presentation of the nominees, the commission on

1 appellate court appointments or its designee shall make the
2 appointment, striving for political balance and fairness. The
3 newly appointed commissioner shall serve out the remainder of
4 the original term.

5 ~~(12)~~ M. Three commissioners, including the chair or
6 vice-chair, constitute a quorum. Three or more affirmative
7 votes are required for any official action. Where a quorum is
8 present, the independent redistricting commission shall
9 conduct business in meetings open to the public, with ~~48~~
10 FORTY-EIGHT or more hours public notice provided.

11 ~~(13)~~ N. A commissioner, during the commissioner's term
12 of office and for three years thereafter, shall be ineligible
13 for Arizona public office or for registration as a paid
14 lobbyist.

15 ~~(14)~~ O. The independent redistricting commission shall
16 establish congressional and legislative districts. The
17 commencement of the mapping process for both the congressional
18 and legislative districts shall be the creation of districts
19 of equal population in a grid-like pattern across the state.
20 Adjustments to the grid shall then be made as necessary to
21 accommodate the goals as set forth below:

22 ~~A.~~ 1. Districts shall comply with the United States
23 Constitution and the United States voting rights act. ~~;~~

24 ~~B.~~ 2. Congressional districts shall have equal
25 population to the extent practicable, and state legislative
26 districts shall have equal population to the extent
27 practicable. ~~;~~

28 ~~C.~~ 3. Districts shall be geographically compact and
29 contiguous to the extent practicable. ~~;~~

30 ~~D.~~ 4. District boundaries shall respect communities of
31 interest to the extent practicable. ~~;~~

32 ~~E.~~ 5. To the extent practicable, district lines shall
33 use visible geographic features, city, town and county
34 boundaries, and undivided census tracts. ~~;~~

35 ~~F.~~ 6. To the extent practicable, competitive districts
36 should be favored where to do so would create no significant
37 detriment to the other goals.

38 ~~(15)~~ P. Party registration and voting history data
39 shall be excluded from the initial phase of the mapping
40 process but may be used to test maps for compliance with the
41 above goals. The places of residence of incumbents or
42 candidates shall not be identified or considered.

43 ~~(16)~~ Q. The independent redistricting commission shall
44 advertise a draft map of congressional districts and a draft
45 map of legislative districts to the public for comment, which
46 comment shall be taken for at least thirty days. Either or
47 both bodies of the legislature may act within this period to

1 make recommendations to the independent redistricting
2 commission by memorial or by minority report, which
3 recommendations shall be considered by the independent
4 redistricting commission. The independent redistricting
5 commission shall then establish final district boundaries.

6 ~~(17)~~ R. The provisions regarding this section are
7 self-executing. The independent redistricting commission shall
8 certify to the secretary of state the establishment of
9 congressional and legislative districts.

10 ~~(18)~~ S. ~~Upon~~ ON approval of this amendment, the
11 department of administration or its successor shall make
12 adequate office space available for the independent
13 redistricting commission. The STATE treasurer ~~of the state~~
14 shall make \$6,000,000 available for the work of the
15 independent redistricting commission pursuant to the year 2000
16 census. Unused monies shall be returned to the ~~state's~~ STATE
17 general fund. In years ending in eight or nine after the year
18 2001, the department of administration or its successor shall
19 submit to the legislature a recommendation for an
20 appropriation for adequate redistricting expenses and shall
21 make available adequate office space for the operation of the
22 independent redistricting commission. The legislature shall
23 make the necessary appropriations by a majority vote.

24 ~~(19)~~ T. The independent redistricting commission, with
25 fiscal oversight from the department of administration or its
26 successor, shall have procurement and contracting authority
27 and may hire staff and consultants for the purposes of this
28 section, including legal representation.

29 ~~(20)~~ U. The independent redistricting commission shall
30 have standing in legal actions regarding the redistricting
31 plan and the adequacy of resources provided for the operation
32 of the independent redistricting commission. The independent
33 redistricting commission shall have sole authority to
34 determine whether the Arizona attorney general or counsel
35 hired or selected by the independent redistricting commission
36 shall represent the people of Arizona in the legal defense of
37 a redistricting plan.

38 ~~(21)~~ V. Members of the independent redistricting
39 commission are eligible for reimbursement of expenses pursuant
40 to law, and a member's residence is deemed to be the member's
41 post of duty for purposes of reimbursement of expenses.

42 ~~(22)~~ W. Employees of the department of administration
43 or its successor shall not influence or attempt to influence
44 the district-mapping decisions of the independent
45 redistricting commission.

46 ~~(23)~~ X. Each commissioner's duties established by this
47 section expire ~~upon~~ ON the appointment of the first member of

1 the next redistricting commission. The independent
2 redistricting commission shall not meet or incur expenses
3 after the redistricting plan is completed, except if
4 litigation or any government approval of the plan is pending,
5 or to revise districts if required by court decisions or if
6 the number of congressional or legislative districts is
7 changed.

8 2. Applicability; 2042 election

9 This act applies to legislative terms of office that
10 begin in 2043 and later.

11 2. The Secretary of State shall submit this proposition to the
12 voters at the next general election as provided by article XXI,
13 Constitution of Arizona.

14 Enroll and engross to conform

15 Amend title to conform

AARON MÁRQUEZ

SCR1022MÁRQUEZ.docx

03/23/2026

05:42 PM

H: IK/ra

130MMRQGV